



Food and Nutrition Service

U.S. DEPARTMENT OF AGRICULTURE

DATE: May 8, 2026
SUBJECT: Supplemental Nutrition Assistance Program (SNAP) Provisions of the One Big Beautiful Bill Act of 2025 – Restrictions on Internet Expenses and Treatment of Energy Assistance Payments – Questions and Answers #1
TO: All SNAP State Agencies
All Regions

On July 4, 2025, President Donald J. Trump signed into law the [One Big Beautiful Bill Act of 2025](#) (OBBB). The OBBB makes significant changes to the Supplemental Nutrition Assistance Program (SNAP), including to the treatment of energy assistance payments in Section 10103 and internet costs in Section 10104.

On August 29, 2025, the Food and Nutrition Service (FNS) published a memorandum, “[Supplemental Nutrition Assistance Program \(SNAP\) Implementation of the One Big Beautiful Bill Act of 2025 - Treatment of Energy Assistance Payments](#),” that described the SNAP provisions of the OBBB related to the treatment of energy assistance payments. On September 4, 2025, FNS published a memorandum, “[Supplemental Nutrition Assistance Program Provisions of the One Big Beautiful Bill Act of 2025 – Information Memorandum](#),” that provided a general overview of all SNAP provisions, including the treatment of energy assistance payments and restrictions on internet expenses under the OBBB.

This questions-and-answers set provides additional information on implementing Sections 10103 and 10104 the OBBB.

Sincerely,

RONALD
WARD

Digitally signed by
RONALD WARD
Date: 2026.05.08
10:47:58 -04'00'

Ronald Ward
Acting Associate Administrator Supplemental
Nutrition Assistance Program Food and
Nutrition Service
U.S. Department of Agriculture

Enclosure

Food and Nutrition Service, Braddock Metro Center, 1320 Braddock Place, Alexandria, VA 22314

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**SNAP Provisions of the One Big Beautiful Bill Act of 2025 - Restrictions on
Internet Expenses and Treatment of Energy Assistance Payments
Questions and Answers #1**

A. Restrictions on Internet Expenses

1. Are any internet costs an allowable shelter expense?

No, Section 10104 of the OBBB prohibits the State agency from counting any internet costs towards determining a household's shelter costs for the purposes of the excess shelter deduction. Counting households' actual internet costs now violates federal law, and any State agencies that count such costs must discontinue immediately.

2. Can State agencies include internet costs as part of their Standard Utility Allowance (SUA) methodologies and values?

No, internet costs cannot be included in SUA methodologies and values because these costs are no longer an allowable shelter expense.

B. Availability of Standard Utility Allowances (SUAs) Based on Receipt of Energy Assistance

1. Who is eligible for the heating and cooling SUA (HCSUA) based on receipt of a qualifying Low-Income Home Energy Assistance Program (LIHEAP) or other similar energy assistance payment?

Households that contain an elderly or disabled member and receive a qualifying LIHEAP or other payment are automatically eligible for the HCSUA. Households that do not contain an elderly or disabled member no longer qualify for the HCSUA automatically based solely on receipt of a LIHEAP or other similar energy assistance payment, consistent with Section 5(e)(6)(C) of the Food and Nutrition Act of 2008 (the Act) and 7 CFR 273.9(d)(6)(iii)(D)(1) and (2).

2. Does OBBB restrict which households qualify for the HCSUA based on a weatherization payment?

Yes, households must contain an elderly or disabled member to qualify for the HCSUA based on receipt of weatherization payments since these payments are considered as an "other similar energy assistance payment." One-time payments for weatherization or emergency repair or replacement of an unsafe or inoperative furnace or other

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heating and cooling device are not considered income, consistent with Sec. 5(d)(11)(B) of the Act and 7 CFR 273.9(c)(11)(ii), regardless of whether the household includes an elderly or disabled member.

C. Third Party Energy Assistance Programs Under State Law

1. Are LIHEAP and Housing and Urban Development (HUD) payments considered “third-party energy assistance payments provided under State law”?

No, LIHEAP and HUD payments are energy assistance payments provided under Federal law and are not considered the same as the energy assistance payments referenced in Section 10103 of the OBBB, which are provided under State law. For treatment of payments under Federal law, such as LIHEAP and HUD payments, State agencies should follow existing procedures in Sec. 5(d)(11) of the Act and 7 CFR 273.9(c)(11).

2. Does OBBB change the treatment of one-time weatherization, emergency repair, or replacement payments made under State law?

No, one-time payments for weatherization or emergency repair or replacement of an unsafe or inoperative furnace or other heating and cooling device are not considered income, consistent with Sec. 5(d)(11)(B) of the Act and 7 CFR 273.9(c)(11)(ii), regardless of whether the household includes an elderly or disabled member.